

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B17: limited mandate-stay grant route marker B17.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Order Granting a Limited Stay of Mandate Pending Possible Certiorari

Entered July 20, 2026

Officer Nolan Rusk's motion for a limited stay of mandate is granted through August 10, 2026. Rusk has identified a substantial question about the interaction between the Supreme Court's intervening specificity instruction in *Zorn v. Linton* and the prospective notice stated in *Estate of Armstrong v. Village of Pinehurst*. The Court reaches no conclusion about the ultimate merit of that question or the likelihood that certiorari will be granted.

Good cause supports a short, fixed interval. The June 30 judgment affirmed denial of an immunity from suit, the district record is complete, and remand could lead promptly to pretrial work while retained counsel completes a petition review. Rusk requested substantially less than Rule 41(d)(2)'s maximum period and represented that authorization will be resolved by August 10.

The stay affects mandate timing only. It does not amend the opinion, change the judgment, revisit the dismissal of factual appellate arguments, or accept Rusk's account of the hidden encounter. The proposed legal question must continue to assume no strike, equipment reach, flight, threat, or immediate danger.

No bond or other security is required because withholding the mandate neither suspends a money judgment nor alters possession of property.

Duration and Reporting Conditions

The Clerk shall withhold the mandate through the end of August 10, 2026 unless this Court dissolves the stay sooner. Rusk must notify the circuit clerk in writing immediately if he decides not to seek certiorari. In all events, he shall file a status report by 5:00 p.m. Eastern time on August 10.

If Rusk files a certiorari petition before expiration and supplies timely written notice with a copy, the stay will have the continuation authorized by Federal Rule of Appellate Procedure 41(d)(2)(B)(ii), subject to further court order. If the Supreme Court grants an extension of the petition deadline and the extension order is transmitted during the stay, Rule 41(d)(2)(B)(i) governs the corresponding period.

An unfinished draft, an unfiled plan to request an extension, or silence will not continue relief. Abandonment removes the basis for the stay and permits the panel to dissolve it. If no qualifying event occurs, the stay expires on the stated date without an implied grace period.

The parties shall promptly serve every status filing. Ellison may respond to a claimed continuation or seek dissolution for changed circumstances. The Clerk shall monitor the deadline but need not solicit the required report. No district remand takes effect while the mandate is withheld.

Decisional Boundaries

The substantial-question finding is limited to Rule 41(d). It is not panel rehearing and does not signal disagreement with the June 30 holding that *Armstrong* clearly established the right on Ellison's assumed facts. Temporary preservation of jurisdiction allows an orderly petition decision; it does not suspend the opinion's precedential force.

Zorn postdates the February 3, 2025 encounter and therefore cannot itself have warned Rusk. Its relevance lies only in the method a reviewing court uses when assessing whether prior decisions were sufficiently specific. Any petition that treats *Zorn* as contemporaneous notice would exceed the question supporting this order.

The district court may continue preserving its record but shall not act on a remand that has not issued. The native body-camera materials remain under existing custody, and neither party shall alter the agreed synchronization or authentication files. This preservation direction imposes no new merits discovery.

If the stay terminates without a filed petition or granted extension, the Clerk shall await a release direction fixing the exact issuance event. The panel anticipates prompt action and reserves authority to order next-day issuance. A Supreme Court denial after a properly continued stay would instead be governed by the immediate-issuance provision of Rule 41(d)(4), absent extraordinary circumstances.

Entered at the direction of Chief Judge Alder and Judges Reed and March on July 20, 2026.